

Welcome to Technijian!

This packet contains all the materials you will need to get started on your new position at **TECHNIJIAN INC.** Please review these documents carefully because each one is essential to moving forward in our relationship.

This packet contains the following:

1. An Offer Letter.
2. A General Employment Terms & Conditions.
3. A Proprietary Information & Confidentiality Agreement with Appendices.
4. Financial Documents (if applicable);
5. A Non-Compete Agreement

Should you have any questions about these documents, please do not hesitate to contact us at **TECHNIJIAN INC.**

Enclosures: Proprietary Information and Inventions Agreement

GENERAL EMPLOYMENT TERMS & CONDITIONS

Name: David Kelsen

Position: Client Support Engineer, Level - 2

Date of Offer: Wednesday, December 20, 2023

Scheduled Reporting Date: December 26th, 2023

1. Compensation: \$65,000 Annual Salary

With a 12-week trial period – If, after a 12-week trial period, both parties agree to continue with employment, you will be added to the standard payroll.

During the 12-week trial period, compensation will be paid with a 1099.

- 2. Benefits, payroll, and other human resource management services are provided through Insperity Employer Group, Inc.** Insperity is a professional employer organization contracted by TECHNIJIAN INC. to perform selected employer responsibilities on our behalf. As a result of **Technijian's** arrangement with Insperity, Insperity will be considered your employer of record for payroll, benefits, and other functions involving employer-related administration.
- 3. Expenses.** The TECHNIJIAN INC. will reimburse you for reasonable and necessary expenses incurred by you in furtherance of **Technijian's** business. All costs claimed are subject to the review and approval of your supervisor. Records must be maintained and submitted for any expenses to be reimbursed - including destination for auto mileage totals and receipts for all other items. Use of personal automobile for TECHNIJIAN INC. business will be reimbursed at the applicable IRS rate in effect per mile.
- 4. Trade Secrets.** During and after employment, you will confidently hold all the Trade Secrets of TECHNIJIAN INC.; you will not disclose these to anyone. This does not apply to information disclosed in the ordinary course of business to other employees of TECHNIJIAN INC. employees at the time.

"Trade Secrets" means the information described in the Description of Trade Secrets (Attachment A) and any other information that from time to time may be identified by **TECHNIJIAN INC.** as confidential or is otherwise known to you as being confidential, whether embodied in memoranda, manuals, letters, or other documents, computer disks, tapes or other information storage devices, hardware, or other media or vehicles. Trade Secrets do not include information generally known, or that is or becomes public domain information through no fault of yours. You will also hold confidential any confidential information of any customer, prospective customer, vendor, or other person if you are told or if you know that the data is confidential.

You will not use any Trade Secrets of **TECHNIJIAN INC.** other than for the benefit of TECHNIJIAN INC. You will not use any confidential information of any customer, prospective customer, vendor, or other person other than for the benefit of such customer, vendor, or other person if such disclosure is required in performing your regular work duties.

These terms and conditions of paragraph 3 are subject to further definition and requirements in the separate *Proprietary Information & Inventions Agreement* ("PIIA") which you may be required to execute. Your signature below constitutes your consent that the obligations herein may be expanded or otherwise modified by said PIIA.

5. Invention Assignment. In consideration of your employment with **TECHNIJIAN INC.**, you hereby represent to and agree with TECHNIJIAN INC. as follows:
- a. TECHNIJIAN INC. Business. You understand that TECHNIJIAN INC. is engaged in a continuous program of research, development, production, and marketing in connection with its business and that, as an essential part of your employment with TECHNIJIAN INC., you may be expected to make new contributions to and create inventions of value for the TECHNIJIAN INC.
 - b. Disclosure of Inventions. From and after the date you become employed with TECHNIJIAN INC., you will promptly disclose in confidence to TECHNIJIAN INC. all inventions, improvements, designs, original works of authorship, formulas, processes, compositions of matter, computer software programs, databases, mask works, and trade secrets ("Invention(s)"), whether or not patentable, copyrightable or protractible as trade secrets, that are made or conceived or first reduced to practice or created by you, either alone or jointly with others, during the period of your employment, whether or not in the course of your employment.
 - c. Work for Hire; Assignment of Inventions. You acknowledge that copyrightable works prepared by you within the scope of your employment are "works for hire" under the Copyright Act and that TECHNIJIAN INC. will be considered the author thereof. You agree that all inventions that (a) are developed using equipment, supplies, facilities, or trade secrets of TECHNIJIAN INC., (b) result from work performed by you for TECHNIJIAN INC., or (c) relate to TECHNIJIAN INC.'s business or current or anticipated research and development, will be the sole and exclusive property of the TECHNIJIAN INC. and are hereby assigned by you to the TECHNIJIAN INC.
 - d. Assignment of Other Rights. You hereby irrevocably transfer and assign to TECHNIJIAN INC.: (a) all worldwide patents, patent applications, copyrights, mask works, trade secrets, and other intellectual property rights in any Invention; and (b) all "Moral Rights" (as defined below) that you may have in or concerning any Invention. You also hereby forever waive and agree never to assert any and all Moral Rights you have in or with respect to any Invention, even after termination of your work on behalf of TECHNIJIAN INC. "Moral Rights" mean any rights to claim authorship of an Invention, to object to or prevent the modification of any Invention, or to withdraw from circulation or control the publication or distribution of any Invention, and any similar right, existing under judicial or statutory law of any country

in the world, or under any treaty, regardless of whether or not such right is denominated or generally referred to as a "moral right."

- e. Assistance. You agree to assist TECHNIJIAN INC. in a very proper way to obtain for TECHNIJIAN INC. and enforce patents, copyrights, mask work rights, trade secret rights, and other legal protections for TECHNIJIAN INC.'s Inventions in any and all countries. You will execute any documents that TECHNIJIAN INC. may reasonably request for use in obtaining or enforcing such patents, copyrights, mask work rights, trade secrets, and other legal protections. Your obligations under this paragraph will continue beyond the termination of your employment with TECHNIJIAN INC., provided that TECHNIJIAN INC. will compensate you at a reasonable rate after such termination for time or expenses actually spent by you at the TECHNIJIAN INC.'s request on such assistance. You appoint the Secretary of TECHNIJIAN INC. as your attorney-in-fact to execute documents on your behalf for this purpose.
 - f. Other Requirements. These terms and conditions of this paragraph 4 are subject to further definition and requirements in the separate Proprietary Information & Inventions Agreement ("PIIA") which you may be required to execute. Your signature below constitutes your consent that the obligations herein may be expanded or otherwise modified by virtue of said PIIA.
6. Proprietary Information. You understand that your employment by TECHNIJIAN INC. creates a relationship of confidence and trust with respect to any information of a confidential or secret nature that may be disclosed to you by TECHNIJIAN INC. or to the business of any parent, subsidiary, affiliate, customer, or supplier of the TECHNIJIAN INC. or any other party with whom the TECHNIJIAN INC. agrees to hold information of such party in confidence ("Proprietary Information"). Such Proprietary Information includes but is not limited to Inventions, marketing plans, product plans, business strategies, financial information, forecasts, personnel information, and customer lists. These terms and conditions of this paragraph 5 are subject to further definition and requirements in the separate Proprietary Information & Inventions Agreement ("PIIA") which you may be required to execute. Your signature below constitutes your consent that the obligations herein may be expanded or otherwise modified by virtue of said PIIA.
7. TECHNIJIAN INC. Property. During and after your employment, you will not use any TECHNIJIAN INC. Property for any purpose other than for the benefit of TECHNIJIAN INC. Except for business uses related to the performance of your job, you will not remove from the TECHNIJIAN INC. premises any TECHNIJIAN INC. Property without the written consent of your supervisor. In the event of your termination of employment, or at any time at the request of TECHNIJIAN INC., you will return all TECHNIJIAN INC. Property. You will also return all copies of TECHNIJIAN INC. Property and any Work Product derived from TECHNIJIAN INC. Property.

"TECHNIJIAN INC. Property" means Trade Secrets of **TECHNIJIAN INC.**, Work Products, customer lists, prospect lists, forms, manuals, records, correspondence, contracts, notes, memoranda, notebooks, and other documents of TECHNIJIAN INC., software media, equipment, and other intangible and tangible property owned by the TECHNIJIAN INC.

8. Confidentiality. At all times, both during your employment and after its termination, you will keep and hold all such Proprietary Information in strict confidence and trust, and you will not use or disclose any of such Proprietary Information without the prior written consent of TECHNIJIAN INC., except as may be necessary to perform your duties as an employee of the TECHNIJIAN INC. for the benefit of the TECHNIJIAN INC. Upon termination of your employment with TECHNIJIAN INC., you will promptly deliver to TECHNIJIAN INC. all documents and materials of any nature pertaining to your work with TECHNIJIAN INC., and you will not take with you any documents or materials or copies thereof containing any Proprietary Information.
9. No Breach of Prior Agreement. You represent that your performance of all the terms of this Agreement and your duties as an employee of TECHNIJIAN INC. will not breach any invention assignment, proprietary information, or similar Agreement with any former employer or another party. You represent that you will not bring with you to TECHNIJIAN INC. or use in the performance of your duties for TECHNIJIAN INC. any documents or materials of a former employer that are not generally available to the public or have not been legally transferred to TECHNIJIAN INC.
10. Duty not to Compete. You understand that your employment with TECHNIJIAN INC. requires your undivided attention and effort. As a result, during your employment, you will not, without TECHNIJIAN INC.'s express written consent, engage in any employment or business other than for TECHNIJIAN INC., or invest in or assist in any manner any business which directly or indirectly competes with business or future business plans of the TECHNIJIAN INC.
11. Non-solicitation. During and for a period of one (1) year after termination of your employment with TECHNIJIAN INC., you will not directly or indirectly solicit or take away suppliers, customers, employees, or consultants of TECHNIJIAN INC. for your own benefit or for the benefit of any other party.
12. Name & Likeness Rights, etc. You hereby authorize TECHNIJIAN INC. to use, reuse, and grant others the right to use and reuse your name, photograph, likeness (including caricature), voice, and biographical information, and any reproduction or simulation thereof in any media now known or hereafter developed (including but not limited to film, video, and digital, or other electronic media), both during and after my employment, for whatever purposes the TECHNIJIAN INC. deems necessary.
13. Injunctive Relief. You understand that in the event of a breach or threatened breach of this Agreement by you, TECHNIJIAN INC. will suffer irreparable harm and will therefore be entitled to injunctive relief to enforce this Agreement.
14. Governing Law. This Agreement will be governed and interpreted in accordance with the internal laws of the State of California, without regard to or application of choice of law rules or principles.
15. Severability. In the event that any provision of this Agreement is found by a court, arbitrator, or another tribunal to be illegal, invalid, or unenforceable, then such maximum extent permissible under applicable law and the remainder of this Agreement shall remain in full force and effect.

16. Termination of Employment. As **Technijian** is the TECHNIJIAN INC. for which you will perform service, we will retain the right to control and direct your work, its results, and the manner and means by which your work is accomplished. Your employment with TECHNIJIAN INC. is at will and, therefore, may be terminated by you or TECHNIJIAN INC. at any time and for any reason, with or without cause, and with or without notice. This "at-will" employment relationship may not be modified by any oral or implied agreement.
17. No Duty to Employ. This Agreement does not constitute a contract of employment or obligate TECHNIJIAN INC. to employ you for any stated period.
18. Subsequent Employers. If your employment is terminated, TECHNIJIAN INC. has the right to inform any subsequent employer of your obligations under Sections 3 - 10 above and can send a copy of these terms of employment to that employer.

Entire Agreement. This document and its related attachments contain the entire Agreement between you and **Technijian** regarding the terms of your employment. Any amendment to these terms must be in writing and must be signed by you and the TECHNIJIAN INC.'s President.

I accept the above terms of employment as stated:

Addressee's Signature

Date

Approved by **Technijian** (Following receipt of signed acceptance by the employee)

Management

Date

GENERAL EMPLOYMENT TERMS AND CONDITIONS
ATTACHMENT A**DESCRIPTION OF TRADE SECRETS**

- Employee list and all information contained in employee records
- Vendor list and all information contained in vendor records
- Customer list and all information contained in customer/TECHNIJIAN INC. records
- Prospective Customer list and all information contained in prospective customer/TECHNIJIAN INC. records
- Stockholder list and all information contained in stockholder records
- All information concerning the financial condition of TECHNIJIAN INC., including information contained in any income statement, balance sheet, or another internal financial report.
- Marketing plans and strategies of the TECHNIJIAN INC., including information pertaining to prospective customers.
- Financing plans and strategies of TECHNIJIAN INC.
- Staffing plans and strategies of TECHNIJIAN INC.
- Expansion plans and business strategies of TECHNIJIAN INC.
- Negotiations for financing, merger, acquisition, new customers, new vendors, or otherwise
- Technical research projects, methodologies, and results
- Other research and development projects
- Drawings and specifications
- Software and hardware documentation
- Forms, manuals, handbooks, and guidelines written for internal staff use
- Any materials for which TECHNIJIAN INC. has copyright protection or are marked confidential
- TECHNIJIAN INC.'s proprietary operating procedures and systems

PROPRIETARY INFORMATION and INVENTIONS AGREEMENT

Appendix A

CALIFORNIA LABOR CODE, SECTION 2870

(a) Any provision in any employment agreement which provides that an employee shall assign, or offer to assign, any of his or her rights in an invention to his or her employer shall not apply to an invention that the employee developed entirely on his or her own time without using the employer's equipment, supplies, facilities, or trade secret information except for those inventions that either:

(1) Relate at the time of conception or reduction to practice of the invention to the employer's business, or actual or demonstrably anticipated research or development of the employer.

(2) Result from any work performed by the employee for the employer.

(b) To the extent that a provision in an employment agreement purports to require an employee to assign an invention otherwise excluded from being required to be assigned under subdivision (a), the provision is against the public policy of this state and is unenforceable.

Enacted 1979, amended 1986